

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: December 5, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	2006-1-CV-065745	National Credit Acceptance, Inc. v. Christin R. Vierra	Order of examination: <u>parties to appear</u> .
LINE 2	23CV417737	Albert Hoxha et al v. Adam Burns	Click on LINE 2 or scroll down for ruling.
LINE 3	23CV412715	Ali Abhari v. Jaguar Land Rover North America, LLC	Motion to compel: <u>parties to appear</u> . Click on LINE 3 or scroll down for tentative decision.
LINE 4	24CV428693	Christopher Novak v. Charles Ross et al.	Click on LINE 4 or scroll down for ruling.
LINE 5	23CV411435	Ke Fang v. Ritula Malhotra	Motion to seal: it appears that notice is not proper for the motion, as service was made on November 13, 2024, which is five days too late. <u>Parties to appear</u> .
LINE 6	24CV432798	Michael Karavastev v. Andrean Karavastev	Motion to “stay” the court’s prior order staying this case: notice is not proper, as the proof of service for the motion appears to be based on the erroneous notion that e-filing documents with this court accomplishes service on all parties. This notion confuses the federal court’s e-filing system (PACER) with the state court’s (admittedly less sophisticated) e-filing system. Moreover, it is clear on the face of the motion that it is an effort to re-litigate the merits of the court’s July 31, 2024 order granting the stay (signed by Judge Pennypacker), as well as the court’s September 26, 2024 order denying reconsideration of the July 31, 2024 order. It is an improper effort to obtain a third bite at the apple. Accordingly, the court DENIES the motion to “stay the stay.”
LINE 7	24CV434209	Ezequiel Ciappolino v. Dmitry Stadlin et al.	Click on LINE 7 or scroll down for ruling.

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: December 5, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV444662	Kam Hong Lui et al. v. Rozita Dadgostari	Click on LINE 8 or scroll down for ruling in lines 8-9.
LINE 9	24CV444662	Kam Hong Lui et al. v. Rozita Dadgostari	Click on LINE 8 or scroll down for ruling in lines 8-9.

- oo0oo -

Calendar Line 2

Case Name: *Albert Hoxha et al v. Adam Burns*

Case No.: 23CV417737

Plaintiffs Albert Hoxha and Felipe Deguer (“Plaintiffs”) filed this action for negligence against defendant Adam Burns, as a result of a collision between Burns’s vehicle and Hoxha’s vehicle. Burns now brings a motion for summary judgment as to Plaintiffs’ single cause of action for negligence, based on the statute of limitations.

I. BACKGROUND

According to the complaint, on May 26, 2021, a police officer (“Officer O’Sullivan”) responded to a hit-and-run incident in Saratoga, California. (Complaint, p. 4.) Hoxha reported that Burns rear-ended his vehicle at a red light and then fled the scene. (*Ibid.*) Hoxha took photos of Burns and his vehicle, a 2013 Silver Jeep Wrangler, and reported signs of Burns’s possible intoxication. (*Ibid.*) Upon further investigation, Burns admitted his involvement in the collision, stating that his GPS distracted him and he fled out of fear. (*Ibid.*) Officer O’Sullivan concluded that Burns drove at an unsafe speed and left the scene without providing necessary information, both violations of California law. (*Ibid.*) The officer suspected that Burns was also intoxicated and unlicensed at the time of the incident. (*Ibid.*)

The filing date of the operative complaint is May 10, 2023, although it appears that the clerk’s office originally rejected this filing on that date, requiring Plaintiffs to refile the complaint. On December 20, 2023, the court granted an ex parte application, filed by Plaintiffs and unopposed by Burns, that sought to “correct the date on Plaintiffs’ complaint and summons to reflect a filing date of May 10, 2023.” (See Order Granting Plaintiffs’ Ex Parte Application for Order Correcting Date of Filing of Plaintiffs’ Complaint and Summons.) On September 12, 2024, Burns filed the present motion for summary judgment.

II. REQUEST FOR JUDICIAL NOTICE

With their opposition papers, Plaintiffs request that the court judicially notice Exhibit 5 to their compendium of evidence. (See Plaintiffs’ Request for Judicial Notice in Support of Opposition to Defendant’s Motion for Summary Judgment, p. 2:10-14, citing Declaration of Avi E. Muhtar (“Muhtar Decl.”), ¶ 6, Plaintiffs’ Compendium of Evidence in Opposition to Defendant’s Motion for Summary Judgment (“Compendium of Evidence”), Ex. 5.) Exhibit 5 is the December 13, 2023 ex parte application that the court granted on December 20, 2023. (*Ibid.*)

The court GRANTS Plaintiffs’ request for judicial notice. The court may take judicial notice of the “[r]ecords of any court of this state.” (Evid. Code, § 452, subd. (d).) “It is settled that a court may take judicial notice of its own records . . .” (*Nuliad Farmer Assn. v. La Torre* (1967) 252 Cal.App.2d 788, 791, internal citation omitted.)

III. MOTION FOR SUMMARY JUDGMENT

A. Legal Standard

On summary judgment, the moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic*